

## 25STCV07942 25STCV07942

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-06-26

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Case Number: 25STCV07942 Hearing Date: June 26, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

giancarlo ricci

;

Plaintiff,

vs.

general motors llc

, et al.;

Defendants.

Case

No.:

25STCV07942

Hearing

Date:

June  
26, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

defendant's demurrer to plaintiff's first  
amended complaint

MOVING PARTY: Defendant General Motors LLC

RESPONDING PARTY: Plaintiff Giancarlo Ricci

Demurrer to Complaint

The court  
considered the moving, opposition, and reply papers filed in connection with the  
demurrer.

#### DISCUSSION

Defendant General Motors LLC ("Defendant") moves the court for an  
order sustaining its demurrer to each cause of action alleged by plaintiff Giancarlo  
Ricci ("Plaintiff") in his First Amended Complaint ("FAC").

The court overrules Defendant's demurrer to Plaintiff's first through  
third causes of action because Defendant has not shown that Plaintiff does not  
state facts sufficient to constitute causes of action on the ground that they  
are barred by the statute of limitations and statute of repose set forth in  
Code of Civil Procedure section 871.21.  
(Code Civ. Proc., § 430.10, subd. (e).)

"An action covered by Section 871.20 shall be commenced within one  
year after the expiration of the applicable express warranty." (Code Civ. Proc., § 871.21, subd. (a).) Notwithstanding that  
deadline, "an action

covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.” (Code Civ. Proc., § 871.21, subd. (b).) Section 871.20 states, in relevant part, that

“this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.” (Code Civ. Proc., § 871.20, subd. (a).)

As a threshold matter, the court notes that Plaintiff has argued that section 871.21 “does not apply to inadequate literature/parts claims under Civil Code section 1793.2(a)(3).” (Opp., p. 6:7-11.) But (1) Plaintiff’s third cause of action under that statute alleges that (i) Defendant’s failure to comply with section 1793.2, subdivision (a)(3) was willful and, (ii) “[a]ccordingly, Plaintiff is entitled to a civil penalty of two times Plaintiff’s actual damages, pursuant to Civil Code section 1794(c)[.]” such that (2) it is encompassed by the statute of repose set forth in section 871.21 since section 871.20 states that it is applicable to an action against a manufacturer “for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code . . . .” (FAC, ¶ 45.) (Code Civ. Proc., § 871.20, subd. (a).)

The court also finds that Plaintiff has not shown that section 871.21 does not apply to this action on the ground that it applies to actions filed after July 1, 2025. Pursuant to Code of Civil Procedure section 871.30, if a manufacturer elects to be governed by the subject chapter with respect to all motor vehicles sold in the year 2025 and in all prior years, sections 871.20 to 871.28 apply to actions already filed after January 1, 2025. (Code Civ. Proc., § 871.30, subds. (a) [manufacturer may elect to be governed by the chapter within 30 days of April 2, 2025, i.e., “the effective date of the act adding this section”], (c) [“Unless a manufacturer has made the election described in subdivision (a), Sections 871.20 to 871.28, inclusive, shall not apply to an action described in subdivision (a) of Section 871.20, including actions already filed between January 1, 2025 and the effective date of the act adding this section, with respect to all of its vehicles sold new in the year 2025 and in all prior years”].)

The court, however, finds that retroactive application of the statute of repose set forth in section 871.21 is unconstitutional as applied to Plaintiff.

“[I]t has been specifically held that the Legislature may shorten or extend the period of the statute of limitations, or similar time statutes relating to procedure, and that the changed period may be made applicable to pending proceedings. [Citations.] There is, of course, one important qualification to the rule; where the change in remedy, as, for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time permitted for the party affected to avail himself of his remedy before the statute takes effect. If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party.” (Rosefield Packing Co. v. Superior Court in and for City and County of San Francisco (1935) 4 Cal.2d 120, 122-123; Niagara Fire Ins. Co. v. Cole (1965) 235 Cal.App.2d 40, 43 [“a statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations”].)

Plaintiff has alleged that they entered into a warranty contract with Defendant regarding the subject vehicle on October 21, 2016. (FAC, ¶ 6.) Thus, pursuant to section 871.21, Plaintiff was required to file an action seeking restitution, replacement, or civil penalties against Defendant based on an alleged breach of its express warranty no later than six years after October 21, 2016, i.e., October 21, 2022, which is before the effective date of section 871.21. (Code Civ. Proc., § 871.21, subd. (b).) Because retroactive application of section 871.21 would “wipe out” Plaintiff’s causes of action that were not otherwise barred as of October 21, 2022,[1] it cannot be applied here. (Rosefield Packing Co., supra, 4 Cal.2d at pp. 122-123; Niagara Fire Ins. Co., supra, 235 Cal.App.2d at p. 43.)

The court sustains Defendant’s demurrer to the fourth cause of action for breach of the implied warranty of merchantability because it does not state facts sufficient to constitute a cause of action as barred by the

statute of limitations since (1) “[t]he statute of limitations for breaches of the implied warranty of merchantability is four years” after the accrual of the cause of action; (2) a cause of action accrues when the breach occurs, regardless of the lack of knowledge of the breach, which “occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered[;]” (3) an implied warranty “is not a warranty that explicitly extends to future performance of the goods[.]” such that the statute of limitations occurs upon tender of delivery and not “when the breach is or should have been discovered[;]” and (4) Plaintiff filed this action on March 19, 2025, i.e., more than four years after the date of delivery of the subject vehicle on October 21, 2016. (FAC, ¶ 6.) (Code Civ. Proc., § 430.10, subd. (e); Com. Code, § 2725, subds. (1), (2); *Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 143.)

The court overrules Defendant’s demurrer to the fifth cause of action for fraudulent inducement – concealment because Defendant has not shown that it does not state facts sufficient to constitute a cause of action since Plaintiff has alleged that he did not discover the facts constituting the fraud or mistake until shortly before filing this action (FAC, ¶ 30), such that Defendant has not shown that it is necessarily barred by the statute of limitations; (Code Civ. Proc., §§ 430.10, subd. (e), 338, subd. (d) [“The cause of action [for fraud] is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake”].)

The burden is on the plaintiff “to articulate how it could amend its pleading to render it sufficient.”<sup>2</sup> (*Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290.)<sup>3</sup> To satisfy that burden, a plaintiff “must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.”<sup>4</sup> (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.)<sup>5</sup> The court finds that Plaintiff has not met his burden to show how he can amend the fourth cause of action to render it sufficient against Defendant. The court therefore sustains Defendant’s demurrer to that cause of action without leave to amend.

ORDER

The court overrules defendant

General Motors LLC's demurrer to plaintiff Giancarlo Ricci's first, second, third, and fifth causes of action.

The court sustains defendant General

Motors LLC's demurrer to plaintiff Giancarlo Ricci's fourth cause of action for breach of the implied warranty of merchantability without leave to amend.

The court orders defendant General

Motors LLC to file an answer to plaintiff Giancarlo Ricci's First Amended Complaint within 10 days of the date of this order.

The court orders defendant General

Motors LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: June 26, 2026

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Robert

B. Broadbelt III

Judge

of the Superior Court

[1]

Defendant did not argue, and therefore did not show, that Plaintiff's claims were already barred as of October 21, 2022, pursuant to any other statute of limitations.